



United States
Attorney's Office
District of New Hampshire



Telehealth Company Agrees to Pay \$300,000 to Resolve False Claims Act Allegations

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For Immediate Release

U.S. Attorney's Office, District of New Hampshire

District of New Hampshire

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Telehealth Company Agrees to Pay \$300,000 to Resolve False Claims Act Allegations

CONCORD –U.S. Attorney Erin Creegan announced today that the U.S. Attorney's Office for the District of New Hampshire has entered into a settlement agreement with LifeWorks Counseling Associates, PLLC and its owner Dr. David Ferruolo where they will pay \$300,000 to resolve allegations that they violated the False Claims Act by improperly billing Medicaid for services provided by an individual excluded from the Medicaid program.

No program payments may be made for services furnished by an individual excluded by the U.S. Department of Health and Human Services, Office of the Inspector General ("HHS-OIG"). HHS-OIG has advised health care providers to check the List of Excluded Individuals/Entities on the HHS-OIG web site (<http://oig.hhs.gov/exclusions>) in order to avoid potential liability.

LifeWorks is telehealth mental health provider based in New Hampshire. The United States contended that Ferruolo and LifeWorks submitted claims and received reimbursement from Medicaid for services provided by Erik Alonso, who was excluded from federal health care programs by HHS-OIG at the time such services were provided, which were therefore not reimbursable. To resolve their liability, Ferruolo and his company will pay \$300,000. The settlement amount is based on their ability to pay.

The U.S. Attorney's Office, along with the Criminal Division's Fraud Section, also handled the criminal prosecution of Erik Alonso, who pleaded to one count of healthcare fraud on October 23, 2025. LifeWorks and Ferruolo fully cooperated in the parallel criminal investigation.

U.S. Attorney Creegan said, "A provider is federally excluded from being paid to give healthcare for good reasons, such as prior fraud, criminal convictions, or patient abuse. To protect the public, we will hold accountable those who violate healthcare exclusions."

"The exclusion authority is a cornerstone of our efforts to protect federal health care programs from fraud and abuse," said Roberto Coviello, Special Agent in Charge for the U.S. Department of Health and Human Services Office of Inspector General. "When providers submit claims to the Medicaid program for services rendered by excluded individuals, they violate a fundamental safeguard designed to ensure program integrity. This settlement sends a clear message: we will hold providers accountable when they fail to comply with exclusion rules."

"This settlement should put others on notice that exploiting federally funded health care programs will not be tolerated and those who engage in this type of activity will be identified and held accountable," said Ted E. Docks, Special Agent in Charge of the FBI's Boston Division. "The FBI will continue to work with our partners to protect taxpayers' resources from those who would take advantage of such programs for their own greed."

This case was investigated by HHS-OIG and the FBI. The case was handled by Civil Chief Raphael Katz. There was no admission of liability.

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